

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 810

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 34-614, IDAHO CODE, TO REVISE A PROVISION REGARDING THE QUALIFICATIONS OF STATE REPRESENTATIVES AND SENATORS; AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 34-614, Idaho Code, be, and the same is hereby amended to read as follows:

34-614. ELECTION OF STATE REPRESENTATIVES AND SENATORS -- QUALIFICATIONS. (1) At the general election, 1972, and every alternate year thereafter, there shall be elected in each legislative district such representatives and senators as they may be severally entitled.

(2) No person shall be elected to the office of representative or senator unless he shall have attained the age of twenty-one (21) years at the time of the general election, is a citizen of the United States ~~and shall have~~, has been a registered elector within the legislative district for one (1) year next immediately preceding the general election at which he offers his candidacy, and has maintained a fixed habitation within the legislative district boundaries for one (1) year immediately preceding the date such candidate files a declaration of candidacy for the office of representative or senator. For the purposes of this subsection, "fixed habitation" means a residence as defined in section 34-107, Idaho Code, at which the candidate maintains actual physical presence and occupancy for at least one hundred twenty (120) nights during the one (1) year period immediately preceding the date such candidate files a declaration of candidacy for the office of representative or senator. A candidate shall receive an exemption to the fixed habitation requirement due to active military service or a religious mission during the one (1) year period.

(3) Each candidate shall file his declaration of candidacy with the secretary of state.

(4) Each candidate who files a declaration of candidacy shall at the same time pay a filing fee of thirty dollars (\$30.00) which shall be deposited in the general fund.

SECTION 2. This act shall be in full force and effect on and after January 1, 2027.